

MoU / Partnership Agreement & NDA

Contracting · collaboration, confidentiality, and shared delivery

Drafting note. This is a practical starting template for review by the parties and their legal advisers. Complete the fields, confirm governing law, and obtain appropriate legal review before signature.

1 · Parties and effective date

Field	Information
Lead organisation	LEA Labs PLC
Registered / business address	Applewood Adams, 13th Floor, Nairobi
Partner organisation	
Partner address	
Effective date	
Primary contacts	

This Memorandum of Understanding and Partnership Agreement (the “Agreement”) records the working arrangements between LEA Labs PLC (“LEA”) and the partner identified above (“Partner”). Each may be referred to as a “Party” and together as the “Parties”.

2 · Purpose and scope

The Parties intend to collaborate on practical learning, digital skills, technology, community, research, enterprise, or related activities that support LEA’s working principle: learn → build → contribute. The collaboration will be guided by collaborative ownership, innovation first, sustainability, and continuous learning and impact.

Partnership objective:

Target audience / beneficiaries:

Expected outcome:

3 · Agreed activities

The Parties will cooperate on the activities described below. Detailed deliverables, budgets, milestones, and acceptance criteria may be recorded in a Statement of Work or signed schedule.

No.	Activity / workstream	Lead Party	Timing / output
1			
2			
3			

4 · Working arrangements

LEA will: provide agreed programme or project leadership; coordinate its personnel, learning methods, platforms, and materials; maintain agreed records; and communicate material risks or changes.

Partner will: provide agreed access, people, venues, data, equipment, introductions, approvals, or funding; support timely decisions; and communicate material risks or changes.

Both Parties will: appoint a primary contact, meet at an agreed frequency, maintain an action log, and avoid committing the other Party to a cost, public statement, promise, or legal obligation without written authority.

Resources and costs: Each Party bears its own costs unless a signed schedule states otherwise. Fees, grants, sponsorship, in-kind contributions, reimbursements, procurement, or reporting obligations must be recorded in writing before the relevant activity begins.

5 · Confidentiality and non-disclosure

Each Party may receive non-public information from the other Party, including business plans, pricing, learner or beneficiary information, technical information, credentials, designs, research, financial information, personal data, and information marked or reasonably understood to be confidential (“Confidential Information”). The receiving Party will use Confidential Information only for the collaboration, protect it with reasonable care, and disclose it only to personnel, advisers, or approved subcontractors who need it and are bound by confidentiality obligations.

Confidentiality does not apply to information that is public without breach, was lawfully known before disclosure, is received lawfully from another source without restriction, is independently developed without use of the Confidential Information, or must be disclosed by law. Where lawful, the receiving Party will give prompt notice of a compelled disclosure and disclose only what is required.

The obligations continue for five years after disclosure, except that trade secrets and personal data remain protected for as long as applicable law or their nature requires. On request or termination, each Party will return or securely destroy the other Party’s Confidential Information, subject to lawful retention and routine backup limitations.

6 · Intellectual property, data, and safeguarding

Each Party retains ownership of materials, marks, methods, data, software, and other intellectual property it owned before the collaboration. Ownership or licensing of new work, learner work, jointly created outputs, and third-party materials must be stated in the relevant schedule. Neither Party may use the other Party’s name, logo, photographs, testimonials, or public statements without prior written approval.

The Parties will use personal information only for agreed purposes, limit access, apply appropriate security, report suspected incidents promptly, and follow applicable data-protection requirements. Where children or vulnerable people participate, the Parties will follow agreed safeguarding, consent, supervision, reporting, and referral procedures.

7 · Term, review, and termination

This Agreement begins on the Effective Date and continues until the end date below unless ended earlier. Either Party may end the Agreement by written notice. A Party may end it immediately where the other Party commits a serious breach, creates a material safeguarding or security risk, becomes insolvent, or continuing would be unlawful. Termination does not remove accrued payment, confidentiality, data protection, intellectual property, or record-retention obligations.

Start date: End / review date: Notice period:
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8 · Relationship and dispute resolution

The Parties are independent organisations. This Agreement does not create employment, agency, joint venture, franchise, or authority to bind the other Party unless expressly stated in a signed schedule.

The Parties will first attempt to resolve disputes through their appointed representatives, then through senior management, and then through mediation or another agreed process. If unresolved, the dispute will be handled by the forum stated below.

Governing law: Jurisdiction / forum:

9 · Signatures

By signing, the authorised representatives confirm that they have authority to enter into this Agreement and that the completed information is accurate.

LEA Labs PLC

Name and title:

Signature: Date:

Partner

Name and title:

Signature: Date:

Confidentiality reminder. Attach any approved schedules, data-processing terms, safeguarding protocol, brand-use approval, or budget as an identified part of this Agreement.